

24STCV30845 24STCV30845

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Case Number: 24STCV30845 Hearing Date: July 27, 2026 Dept: 516

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Case Name: Park v. Kia America, Inc., et al.

Case

No.: 24STCV30845

Matter: Motion for Attorney Fees

Moving

Party: Plaintiff Jongsul Park

Responding Party: Defendant Kia America, Inc.

Tentative

Ruling: Plaintiff Jongsul Park's

motion is granted in part and denied in part.

Plaintiff

Jongsul Park ("Plaintiff") filed this action against Defendant Kia America, Inc. ("Defendant") and Does 1 through 10. The Complaint alleged five causes of action against Defendant for: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); and (4) breach of express written warranty under Civil Code sections 1791.1, and 1794; and (5) breach of implied warranty under Civil Code sections 1791.1, and 1794. The Complaint alleges that on December 30,

2023, Plaintiff purchased the Subject Vehicle, a 2023 Kia Carnival vehicle identification number KNDNB4H38P6243956.

Plaintiff

filed a motion for attorneys' fees. Kia opposes.

Legal Standard

Where the

buyer of a vehicle prevails in an action under the Song-Beverly Act, he "shall be allowed by the court to recover . . . a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred" (Civ. Code, § 1794, subd. (d).)

"[T]he

starting point of every fee award . . . must be a calculation of the attorney's services in terms of the time he has expended on the case. Anchoring the analysis to this concept is the only way of approaching the problem that can claim objectivity, a claim which is obviously vital to the prestige of the bar and the courts." (In re Vitamin Cases (2003) 110 Cal. App. 4th 1041, 1058, [citation omitted].) "[T]he primary method for establishing the amount of 'reasonable' attorney fees is the lodestar method. The lodestar (or touchstone) is produced by multiplying the number of hours reasonably expended by counsel by a reasonable hourly rate." (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal. App. 4th 819, 833 (Thayer).) Under this approach, a base amount is calculated from a compilation of time reasonably spent and reasonable hourly compensation of each attorney. (Serrano v. Priest (1977) 20 Cal.3d 25, 48; Serrano v. Unruh (1982) 32 Cal.3d 621, 639 (Serrano).) A fee request that appears unreasonably inflated is a special circumstance that permits the trial court to reduce the award or deny it altogether. (Serrano, supra, 32 Cal. 3d at p. 635.)

Request for Judicial Notice

Plaintiff

requests that the Court take judicial notice of nine court records in the following cases: (1) Fuller v. FCA US LLC (L.A. Super. Ct. Case No. BC556964); (2) Caplan v. FCA US LLC (L.A. Super. Ct. Case No. BC580793); (3) Vanwaus v. FCA US, LLC (L.A. Super. Ct. Case No. BC591282); (4) Noormohammad

et al. v. BMW of North America, Inc. (San Bernardino Super. Ct. Case No. CIVDS1717263); (5) Zayas v. FCA US LLC (Orange County Super. Ct. Case No. 30-2019-01053549-CU-BC-CJC); (6) Galligan v. General Motors, LLC (Orange County Superior Ct. Case No. 30-2019-01045846-CU-BC-CJC); (7) Cechvala, et al. v. FCA US, LLC (San Diego Superior Ct. Case No. 37-2018-00010099-CU-BC-CTL); (8) Markarian v. FCA US LLC (Los Angeles Superior Court Case No. 23CHCV00247); and (9) Prasad v. General Motors, LLC (Sacramento Superior Court Case No. 34-2023-00333314-CU-BC-GDS).

The Court grants Plaintiff's request for judicial notice pursuant to Evidence Code section 452, subdivision (d).

Analysis

Plaintiff

requests fees in the amount of \$31,342.50 in attorney's fees, plus \$5,000 for Plaintiff to read Defendant's opposition and file a reply.

Reasonableness of Plaintiff's Counsel's Rates

"A

prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 817–818 (Robertson).) "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 (Ketchum).)

Plaintiff

requests that the Court accept Counsel Benjeman Beck's ("Beck") hourly rates from \$550 to \$600. (Beck Decl., ¶ 31.) Plaintiff also requests that the Court accept Counsel Misoo Choi's ("Choi") hourly rate from 550 to \$575. (Choi Decl., ¶ 4.) The Court finds that Plaintiff has presented sufficient evidence to support the hourly rates requested for her attorneys Beck and Choi. However, as

to legal assistant Kimberly Santos's ("Santos") hourly rate, Plaintiff provides no evidence or argument that her \$150 hourly rate is reasonable. To the Court's knowledge, the hourly rate is unreasonable and excessive. The Court will impose a reduction to Santos' hourly rate from \$150 to \$100.

Thus, the Court accepts Beck and Choi's Hourly rate, but imposes a reduction of Santos hourly rate from \$150 to \$100. The Court imposes a total reduction of \$1,725.00.

Reasonableness of Plaintiff's Counsel's Hours

The Court must base the attorneys' fees on the "actual time expended on the case

as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged." (Robertson, *supra*, 144 Cal.App.4th at p. 817.) The Court must ascertain "whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable." (*Ibid.*)

Plaintiff contends that her attorneys and staff spent a total of 71.5 hours to litigate her case. The breakdown for each attorney is as follows:

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Beck 32.3

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Choi: 13.7

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Santos: 34.5

In opposition, Defendant argues that the amount of hours requested is unreasonable and excessive because the need for two attorneys was unnecessary, Plaintiff's counsel double billed, and Plaintiff seeks fees that have not been earned without supporting the request as to the present motion.

As an initial matter, Plaintiff does not present the Court with any argument that her case was novel or complex that would justify the amount of hours requested. The case also lasted just under a year, and no substantial motions were filed in this action, or vehicle inspection. While Plaintiff is not limited to the use of only one attorney, Plaintiff is still required to meet her burden to establish that two attorneys were reasonable and necessary to litigate her case. Here, Plaintiff contends that both attorneys were necessary to communicate with her because she is a native Korean speaker, so Choi handled the client relationship while Beck litigated the case. (Beck Supp. Decl., ¶ 3.) However, correspondence between Beck and Choi is not a recoverable fee; thus, the Court will strike \$1,615.00 from the total amount.

As for Santos, Plaintiff has not presented sufficient basis to support the need for the 34.5 hours spent by Beck's legal assistant. Plaintiff argues that the Court should accept the hours requested because a lower rate was used to perform clerical tasks instead of her attorney's higher rates. However, this does not meet Plaintiff's burden. The Court finds that a \$1,293.75 reduction is warranted and reasonable for the hours worked.

In opposition, Defendant also argues that Plaintiff conducted discovery after Plaintiff received the settlement agreement on August 11, 2025. Plaintiff argues that she had an ongoing obligation to comply with discovery. However, it is unreasonable for Plaintiff to request the Court grant fees for an unreasonable expenditure of hours to conduct discovery, and not serve responses. Thus, the Court will impose a \$2,687.00 reduction.

In reply, Plaintiff contends that her attorney spent \$3,180 of the \$5,000 anticipated fees on this motion. Thus, the Court will impose a \$1,820 reduction.

Therefore, the Court will impose a total reduction of \$7,415.75.

Conclusion

Plaintiff's

motion for attorneys' fees is granted in part and denied in part. Plaintiff is

awarded

fees in the total amount of \$29,021.75.